

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUPL065544: ARMAN HOVAKEMIAN, et al. vs JOSHUA R. DRISKELL, et al.

09/18/2026 in Department 43

Demurrer to Second Cause of Action of First Amended Complaint

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant, the Estate of Paul Berkovitz, by and through its personal representative and administrator with will annexed and Joshua R. Driskell's Demurrer to Second Cause of Action of First Amended Complaint.

Tentative Ruling: The Demurrer to Second Cause of Action of First Amended Complaint is OVERRULED. Defendants are ordered to file an answer to the First Amended Complaint on or before October 2, 2026.

The complaint sufficiently pleads Defendants were the manufacturers, designers, labelers, developers, processors, producers, assemblers, builders, testers, inspectors, installers, warners, endorsers, recommenders, merchandisers, advertisers, exporters, wholesalers, retailers, sellers, modifiers, servicers, repairers, providers, and otherwise distributors of the subject aircraft, its avionics, and all other component parts.. (Complaint at ¶21). These factual allegations provide a basis for the Second Cause of Action for product liability.

Defendant's argument that the complaint also pleads that the flight was a "personal flight" and that Mr. Berkovitz "owned and piloted" the aircraft (Demurrer page 5, lines 2-3.) does not negate the above factual allegations. Defendants argue that "The subject aircraft was a kit manufactured and sold by Defendant Van's Aircraft. The avionics and other component parts were designed and manufactured by entities such as Dynon Avionics, Inc. Mr. Berkovitz merely purchased these products from their respective commercial retailers as an end-user for his own personal, recreational use. Mr. Berkovitz did not design, produce, market, sell, or distribute any of the Products at Issue to any other person." (Demurrer page 7, lines 4-9.) These assertions exceed the four corners of the complaint and are factual issues to be resolved beyond the pleading stage. As quoted by the demurring parties, "In ruling on a demurrer, 'facts not alleged are presumed not to exist.'" (Demurrer page 6, lines 6-7.) The facts on which the Demurrer relies are not alleged in the complaint, thus, "they do not exist" for purposes of ruling on the Demurrer.

Plaintiff is ordered to serve notice of the Court's ruling.